

6. 9:00 AM CASE NUMBER: L25-08198
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRIS CHATMAN
*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion, on 12/30/25, to vacate dismissal and enter judgment pursuant to stipulation, plus an amended Motion on 1/29/26.

The Motion is unopposed, however, the Motion was originally scheduled to be heard on 3/17/26, and on that date, this court ruled that Plaintiff had not properly noticed Defendant of the motion or the hearing.

The Motion was continued to 6/9/26, 9am, and the court ordered the Plaintiff to provide Defendant notice of the Motion and the hearing.

As of this writing, 6/3/26, Plaintiff has not filed anything reflecting service of the appearance on 6/9/26.

Disposition

This matter will be dropped.

7. 9:00 AM CASE NUMBER: MSL19-02977
CASE NAME: BARCLAYS BANK VS. LYNCH
*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON
3/4/26
FILED BY: BARCLAYS BANK DELAWARE
TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Memo of Points and Authorities, and one of costs. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.

Plaintiff also filed a declaration reflecting their attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint, alleges common counts, in that Defendant obtained a credit account from Plaintiff, borrowed money on this account, then failed to make payments on the account when they were due, owing a balance of \$1,937.78.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer filed 6/20/19, marks the box indicating that all statements in the Complaint are true. The Answer reflects nothing else.

The memo on costs reflects costs of \$60.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, "[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint." *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she "has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint." *CCP 431.30(e)*.

A court can grant a motion for judgment on the pleadings with leave to amend. *CCP 438(h)(1)*. The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235

Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, the Defendant admits all of the allegations in the Complaint and makes no request for leave to amend the Answer.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is granted. Judgment is awarded in the amount of \$1,937.78.

Costs are awarded in the amount of \$60.

Plaintiff shall prepare and submit a proposed order and judgment, and serve notice of entry of same on Defendant.

8. 9:00 AM CASE NUMBER: MSL22-01124
CASE NAME: BANK OF AMERICA, N.A. VS. ALAN DAS NEVES
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: BANK OF AMERICA, N.A.
***TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings (“Motion”), along with a Memo of Points and Authorities, a Memo on Costs, and a Declaration reflecting an attempt to meet and confer. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.

There is no evidence that the Declaration was served on the Defendant, but an insufficient declaration of an attempt to meet and confer is not grounds for the denial of a motion for judgment on the pleadings, under CCP Section 439(a)(4).

The Motion is unopposed.

Background

Plaintiff’s Motion argues that Defendant’s Answer both admits the allegations of the